

CHAPTER 14: SIGNS

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Section 14.1 Purpose and Applicability

The purpose of this section is to support and complement the various land uses allowed in the China Grove area by the adoption of policies and regulations concerning the placement of signs. The outdoor placement of signs is a legitimate use of private property, but the erection of signs should be controlled and regulated in order to promote the health, safety, welfare, convenience, and enjoyment of travel on roadways, as well as protect the public investment in such roadways. The provisions of this section are also intended to promote the reasonable, orderly, and effective display of such signs, displays, and devices. It is also the intent of this section to prevent signs from dominating the visual appearance of the area in which they are located and to enhance the aesthetic environment of the China Grove area. In regard to sign content, it is affirmed that noncommercial messages are allowed in substitution for any commercial message on any sign permitted under these regulations.

Except as otherwise provided in this Ordinance, it shall be unlawful for any person to erect, construct, enlarge, move, or replace any sign, without first having obtained a sign permit for such sign from the Zoning Administrator as required by this Ordinance. A fee, in accordance with a fee schedule adopted by the Town Council, shall be charged for each sign permit issued.

Section 14.2 General Provisions

14.2.1 Sign Design Guidelines

- A. Materials, colors, and shapes of proposed signs should be compatible with the buildings and the surrounding area.
- B. The sign shall not be the dominant feature of its location.
- C. A uniform sign plan shall be required for all office and retail complexes and multi-tenant buildings. All tenants shall comply with the approved uniform sign plan.

14.2.2 Sign Area

- A. For wall signs, placard signs, and window signs, the area of the sign shall be the smallest rectangle that can encompass each word, letter, and logos included in the sign. Portions of the sign meeting the definition of a mural are not included in the area.
- B. For freestanding signs, neighborhood identification signs, banners, and other similar signs, the area shall include the rectangular area of the surface to which the sign is affixed.

14.2.3 Sign Height

The height of a sign shall be measured from the highest point of a sign to the point of ground surface beneath it. Ornamentation such as caps, spires, and finials shall not extend more than two (2) feet from the top of the sign. The use of berms or raised landscape areas is only permitted to raise the base of the sign to the mean elevation of the fronting street.

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14.2.4 Sign Setbacks

All signs shall be set back a minimum five (5) feet from the right-of-way of a public or private street. At intersections, no sign shall be in the sight triangle as defined by this ordinance. No freestanding sign shall be located within (100) feet of any other freestanding sign unless the Zoning Administrator determines that practical difficulties exist for locating the sign.

14.2.5 Sign Illumination

Illuminated signs shall conform to the following:

- A. All illuminated signs shall have their lighting directed in such a manner as to illuminate only the face of the sign.
- B. External light sources shall not be visible from the right-of-way nor cause glare hazards to pedestrians, motorists, or adjacent properties.
- C. A maximum of (10) foot candles may be permitted on any portion of the sign.
- D. All lighting shall meet all applicable electrical codes.
- E. A new commercial sign within (100) feet of an existing residential structure shall not be illuminated between the hours of 12:00 midnight and 6:00 a.m.
- F. Lighting for signs shall be maintained and shall not create excessive noise.

14.2.6 Maintenance and Upkeep of Signs

- A. All signs and all components thereof, including supports, braces, and anchors shall be kept in a good state of repair, in compliance with all building and electrical codes, and in conformance with the requirements of this Ordinance (unless deemed a legal non-conforming sign by Chapter 5 of this Ordinance). Any sign which is determined by the Zoning Administrator or building inspector as being insecure, in danger of falling or otherwise endangering the public safety shall be immediately removed by its owner unless it is repaired and made to otherwise comply with the requirements of this Ordinance.
- B. If a sign advertises a business, service, commodity, attraction or other enterprise or activity that is no longer operating or being offered or conducted, then that sign and sign structure shall be considered discontinued regardless of reason or intent and shall, within (180) days after such discontinuation, be removed by the owner of the property where the sign is located.

14.2.7 Removal of Signs in the Right-of-Way

The Zoning Administrator or his designee may remove and destroy or otherwise dispose of any sign placed on public property or within any right-of-way of any public or private street. Penalties shall be levied for each such sign as outlined in Chapter 4 of this Ordinance.

Section 14.3 Signs That Do Not Require a Permit

The following types of signs are exempt from permit requirements in this Chapter and may be placed in any zoning district. Such signs shall otherwise be in conformance with all applicable requirements

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contained in this Ordinance. All such signs (except government signs) shall be located outside a road right-of-way.

A. Government and public interest signs.

B. Memorial signs, plaques or grave markers which are noncommercial in nature.

C. Flags, pennants, insignia, or religious symbols of any government, non-profit or not-for-profit organization when not displayed in connection with a commercial promotion or as an advertising device. Flag poles are limited to (35) feet in height.

D. Integral decorative or architectural features of buildings.

E. Murals

F. On-premise directional and instructional signs not exceeding six (6) square feet in area apiece. For developments over (10) acres with multiple vehicle entrances located in C-P, PUD, LI, and HI districts, such signs may be increased in size to not exceed sixteen (16) square feet in area apiece.

G. Identification signs for residential uses not exceeding four (4) square feet in area [one (1) only per premises]

H. Incidental signs. However, in no case shall a drive-through service window menu board be oriented to a public right-of-way or exceed (32) square feet in area. Any such drive-through service window menu board containing a loudspeaker shall be located at least (50) feet from any pre-existing residential structure located in a residential district.

I. Temporary Freestanding Signs:

1. Temporary Signage During a Local, State, or Federal Election Period

- a) Each sign shall not exceed eight (8) square feet in area.
- b) All such signs shall not be placed more than (60) days prior to the election.
- c) No signs may be placed in Town controlled street rights-of-way.
- d) Any such signs placed and remaining in NCDOT rights-of-way (30) days after the election shall be deemed abandoned and can be removed and disposed of without penalty.

2. Temporary real estate signs advertising a specific property for sale, lease, rent or development provided that:

- a) One sign per street frontage advertising real estate "For Sale", "For Rent", "For Lease", "Under Active Development", or "For Development" not greater than (10) square feet in area within a residential district or Minor Subdivision or (32) square feet in area for a Major Subdivisions or a nonresidential district and may be located on the property being advertised so long as said sign is located behind the street right-of-way line for the duration of development, vacancy, or sale. If the property so advertised lies on a corner lot or double frontage lot, then a second sign may be oriented along the second street so long as the two signs are at least (100) feet apart as measured by the shortest straight line.

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- b) In addition to the on-site real estate sign(s), a maximum of three (3) directional signs, each not exceeding four (4) square feet in area, shall be permitted off the subject premises
 - c) All such temporary signs shall be removed within seven (7) days after the property has been sold, rented, leased, etc.
 - d) No sign allowed under this subsection shall be lighted.
3. Consistent with NCGS 160D-908, fence wraps displaying signage affixed to perimeter fencing at a construction site are exempt from regulation or permitting, including any of the above provisions in subsection J. until the certificate of occupancy is issued for the final portion of construction at that site or (24) months from the time the fence wrap was installed, whichever is shorter.
4. One (1) temporary freestanding sign no larger than (6) sq. ft. per street frontage may be placed on a developed and occupied residential property when the property owner or occupant is opening the property to the general public; provided that:
- Sign must be located on private property outside of the right-of-way.
 - Limited to (2) consecutive days no more than six (6) times per year.
5. One (1) temporary freestanding sign no larger than (3) sq. ft. per street frontage may be placed on a property by the property owner, or occupant, or with permission from the property owner at any time.

. J. Temporary special event banner-provided that:

- Signs shall be erected no sooner than (10) days prior and removed no later than two (2) days after the event.
- No such sign shall exceed (32) square feet.
- No such sign shall be illuminated.
- All such signs shall be located off the street right-of-way, unless otherwise granted permission for such a location by the Town of China Grove or NCDOT. In no case may any such sign extend onto or over a street pavement or impede the view of any motorists or pedestrians. Location of such signs within a road right-of-way shall be limited to the day of the event.

K. Directional Signs provided that:

- No more than three (3) directional signs per principal use may be erected. No two directional signs shall be located within 1,000 feet of each other as measured using the straightest short line distance.
- Directional signs greater than three (3) feet in height as measured from the grade of the road upon which it fronts shall be located outside the required sight triangle.
- Directional signs shall not be illuminated.
- All directional signs shall be free-standing signs. Portable signs shall be prohibited.
- There shall be no greater than four (4) directional signs on separate supports at the intersection of any two (2) roads.
- More than one (1) sign may be placed on the same supports.
- No two (2) directional signs hung from separate supports shall be located within five (5) feet of each other.
- The maximum area of any directional sign shall be six (6) square feet.

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L. Directory Signs provided that:

- No sign is located in a road right-of-way.
- The maximum sign area shall be (40) square feet or one-half the area of the largest free-standing sign permitted for said use, whichever is less.
- Letters do not exceed six (6) inches in height.
- Height of the sign does not exceed six (6) feet.

M. Temporary window signs located inside the window provided that they do not exceed (40) percent of the window area.

N. Non-commercial informational signs provided that they do not exceed four (4) square feet.

O. Signs located within a stadium intended to be read only by persons seated within the stadium.

P. Permanent municipal, school, recreational and civic club sponsored signs, schedule of events, rules, and regulations signs. Identification signs require a permit as set forth in Section 14.4.

Q. Any sign inside a building, not attached to or placed within an external window or piece of glass that is not legible more than three (3) feet beyond the building in which it is located.

R. Signs placed on newspaper boxes designed for placement of delivered newspapers to a particular location.

S. Temporary banners that do not exceed (32) square feet and are attached flush to a wall face and do not remain in place for more than (30) days.

AA. Ghost Sign Restoration

Section 14.4 Signs That Require a Permit

14.4.1 Signs Permitted by Zoning District

Sign Type	R-P	R-S	R-T	R-M	R-MH	O-I	N-C	C-B	C-P	H-B	L-I	H-I
Neighborhood Identification	XL*	XL*	XL*	XL**	XL*	XL**	XL**	XL**				
Placard	X	X	X	X	X	X	X	X	X	X	X	X
Wall	XL*	C	C	C	C	XL	XL	XL	XL	XL	XL	XL
Freestanding	XL	CL	CL	CL	CL	XL	XL		XL	XL	XL	XL
Projecting							XL	XL				

X: Sign Allowed

C: Sign Allowed for Civic Uses only

L: Illumination Allowed

*: External illumination only

** Internal Letter or Halo Illumination Allowed

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14.4.2 Sign Requirements by Type

A. Neighborhood Identification Sign

1. One (1) per main street frontage entrance (except as noted in 2 below).
2. Maximum area is (32) square feet. Area may be split between two (2) signs on either side of the entrance.
3. Maximum height is six (6) feet.
4. Minimum setback is five (5) feet from adjacent property lines and from the street right-of-way.

B. Placard Sign (Door Entrance Sign)

1. One (1) wall-mounted sign per street frontage.
2. Maximum area is four (4) square feet.

C. Wall Sign

The following shall be included in the wall sign category: canopy signs, awning signs, permanent window signs. The following regulations apply to wall signs:

1. Maximum sign area is (15) percent of the wall area. Any number of signs may make up the allowable area. In districts where both wall signs and freestanding signs are allowed, and a freestanding sign is not utilized, then the front wall sign area may be increased up to (20) percent of the wall face.
2. Maximum projection is (18) inches from the wall face.
3. Signs shall not extend above the parapet or eave of the building.
4. Accessory structures subordinate to the principal structure are permitted one (1) wall sign not to exceed 20 square feet.

D. Freestanding Sign

1. Freestanding signs shall be monument style with the bottom of the sign portion of the structure beginning no more than three (3) feet from the ground.
2. One (1) sign per street frontage.
3. Developments with two (2) or more tenants shall utilize a multi-tenant sign.
4. Maximum sign area is (32) square feet. For multi-tenant signs, four (4) square feet per tenant may be added up to a maximum of (64) square feet. In the N-C district, the maximum sign area is (16) square feet.
5. Maximum height is (10) feet. In the N-C district, the maximum height is (6) feet.

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6. Minimum setback is five (5) feet from adjacent property lines and from the street right-of-way.
7. Freestanding signs are not permitted on the same street frontage on a parcel where a projecting sign is also located.

E. Electronic Message Center (EMC)

1. Electronic Message Center (EMC) signs are permitted in accordance with the following provisions:
 - a. New or existing conforming signs incorporating an electronic message board as part of the sign face are permitted in C-B and H-B zoned districts along major thoroughfares and in R-S, R-T, O-I, LI, and N-C zoned districts along all road types for civic and institutional uses only.
 - b. EMC signs shall not be located within (100) ft. of a residential use.
 - c. EMC's using LED technology shall provide a minimum LED density of 19x19 mm (bulb cluster spacing on center).
 - d. EMC signs shall not have scrolling, animation, or flashing messages. Each message shall remain fixed for a minimum of (20) seconds with an instant transition.
 - e. Luminosity Standards: Self luminous EMC's shall be subject to the following luminosity standards:
 - a. The luminosity standards of any civic freestanding signs in the R-S or R-T district shall not exceed .3 foot candles above ambient light measured from the property line and shall not be illuminated between midnight and 5:00 a.m.
 - b. Maximum nits:
 - i. Day: max. 5,000 nits
 - ii. Night: max. 150 nits
 - f. Prior to final inspection approval, the applicant shall provide proof that all lighting levels and specifications in this section have been field-verified by a qualified inspector.

F.- Projecting Sign

1. Projecting Signs shall be no more than (16) square feet in size and no side dimension being greater than (4) feet.
2. One (1) per store front.
3. Sign must be on the front façade.
4. Minimum height above sidewalk (ground) (7) seven feet.

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5. (12) inches maximum space between wall and sign.
6. Buildings on corner lots may place signs that are visible from both streets and may have the vertical dimension greater than (4) feet in length, with approval of the Zoning Administrator.
7. Projecting signs are not permitted on the same street frontage on a parcel where a freestanding sign is also located.

Section 14.5 Prohibited Signs

- A. Any sign which the Zoning Administrator determines obstructs the view of bicyclists or motorists using any street, approach to any street intersection, or which interferes with the effectiveness of or obscures any traffic sign, device, or signal shall be prohibited.
- B. Illuminated, highly reflective signs, or spotlights which hamper the vision of motorists or bicyclists.
- C. Signs not erected by a public authority which may be erroneously construed as government signs or emergency warning signs. An example of this is a sign which contains a picture of a traffic sign plus the word "Stop", "Yield", etc.
- D. Any sign located outdoors which interferes with free passage from or obstructs any fire escape, downspout, window, door, stairway, ladder, or opening intended as a means of ingress or egress or providing light or air.
- E. Any sign (other than a government sign), banner or display placed on any curb, sidewalk, post, pole, hydrant, bridge, tree, or other surface located on, over, or across any public street or right-of-way, unless otherwise permitted.
- F. Any sign located to intentionally deny an adjoining property owner visual access to an existing sign.
- G. Flashing signs, signs with flashing or reflective disks, signs with flashing lights or lights of changing degree of intensity or color or signs with electrically scrolled messages (except government signs and signs which give time and temperature information). If a time and temperature sign alternates between a time message and a temperature message it shall continuously show one message a minimum of three (3) seconds in time before switching to the other message.
- H. Portable signs.
- I. Facsimile signs, three-dimensional objects, or human figures which may or may not contain advertising matter and may or may not contain information about products sold on the premises, and are located in such a manner as to attract attention.
- J. Parked vehicles with messages (exempting vehicles with commercial advertising which are used regularly and customarily to transport persons or property for business).
- K. Rotating signs, other than on-premise rotating identification names which contain a logo and/or business

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name on it.

L. Roof signs.

M. Pole Signs.

N. Billboards (off-premises advertising).

O. Banners that are greater than (32) square feet, are not placed on a wall, or are in place for more than (30) days.

P. Signs placed on a piece of property without permission of its owners or agent.

Q. Inflatable signs including inflated balloons having a diameter of greater than two (2) feet.

R. Any sign whose sign face was initially constructed and designed to be placed and/or transported on wheels, regardless if said sign face is removed from its base and placed on or in the ground so as to otherwise classify said sign as a "freestanding" sign as herein defined.

S. Other signs not expressly permitted in this Ordinance

T. Signs of closed or relocated businesses must have the sign copy removed (sign made blank) within (60) days after said closing or relocation.